

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative ruling without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and no party appears at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

September 15, 2026

10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	Response Fire Supply, LLC vs. Cal-West Fire Protection 24-01431854	Demurrer to Third Amended Complaint Defendant Cal-West Fire Protection, Inc. erroneously sued herein as Cal West Fire Protection seeks an order sustaining its demurrer to the 1-7th causes of action of the Third Amended Complaint. Demurrer is continued for meet and confer. CCP§430.41 (a) Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. If an amended complaint, cross-complaint, or answer is filed, the responding party shall meet and confer again with the party who filed the

	amended pleading before filing a demurrer to the amended pleading. Here, the Declaration of Ashley Baron, Esq provides: 7. The Third Amended Complaint (TAC) was filed on or about May 8, 2026, I was leaving on an extended trip out of the country from mid-May to mid-June. On May 18, 2026, I wrote a Meet and Confer correspondence to Mr. Blitzer and detailed the issues I saw with the TAC. A true and correct copy of that correspondence is attached hereto as Exhibit “1” and incorporated herein by this reference. I received no response to the Meet and Confer, and even with the filed 30-day extension, I was forced to file the Demurrer to preserve my client’s rights. Therefore, no meet-and-confer occurred. Indeed, while Plaintiff’s Attorney, Brett Bitzer, filed an improper declaration, he failed to indicate whether he responded to Defendant’s meet and confer. Significantly, the issues presented in this case make it suitable for meet and confer. In response to this Court’s ruling on the demurrer to the Second Amended Complaint (wherein it appeared the SAC was a sham), Plaintiff filed a Third Amended Complaint which improperly added four (4) new causes of action. Plaintiff’s counsel then attempted to discuss the issue of sham pleading in his declaration—which cannot be considered by the Court. Given that this is the TAC, and no more amendments can be made, the parties should’ve given serious consideration to the history of this case and causes of action pled herein. Demurrer is continued to October 27, 2026 at 10:00 AM. Nine Court days prior to the continued hearing date, Defense counsel to submit a declaration setting forth the meet-and-confer results. To the extent
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		Plaintiff's counsel fails to comply, the Court will set an OSC re Sanctions. Defendant to give notice.
102	Wallace vs. Novak 26-01541076	1. Demurrer to Complaint 2. Case Management Conference Defendant Vladislav Novak ("Defendant") demurs to the Complaint of plaintiff Robert R. Wallace ("Plaintiff"). For the reasons set forth below, the Demurrer is OVERRULED. First Cause of Action for Breach of Contract Defendant argues the Complaint deliberately omits the dates on which any of the three alleged agreements were executed to obscure the fact that the claims are time-barred. Because the Complaint alleges that the contract provided for payment in approximately annual installments over ten years and Defendant made only two payments, a reasonable inference is that the contract was executed and the alleged breaches occurred more than four years before Plaintiff filed this action. Defendant further argues Plaintiff has failed to attach any of the three agreements, set out their terms verbatim, or provide sufficient detail to determine exactly what obligations were owed and when. Defendant contends the Complaint is uncertain because it references three written agreements without identifying which agreement forms the basis of the claim. As Plaintiff points out, the face of the Complaint does not clearly and affirmatively show that the breach of contract claim is time-barred. Thus, Defendant's statute of limitations argument must be rejected. (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315-1316 ["In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the

complaint; it is not enough that the complaint shows merely that the action may be barred.’ ”].)

The Complaint defines the “Contract” as the Promissory Note entered by Plaintiff and Defendant, which superseded the Original Note and Loan Modification Agreement. Thus, Defendant’s argument that the Complaint is uncertain because it is unclear which agreement forms the basis of this claim lacks merit. Further, the Complaint alleges that, under the Contract, Defendant was to pay Plaintiff the principal sum of \$95,000 in installments over a ten-year period with a zero percent interest rate, except that a six percent interest rate would accrue in the event of a default that went uncorrected for ten days. These allegations sufficiently plead the legal effect of the underlying contract, and any failure to set out the terms verbatim or attach to the contract is not fatal. (*Miles v. Deutsche Bank Nat’l Trust Co.* (2015) 236 Cal.App.4th 394, 402.)

Second Cause of Action for Financial Elder Abuse

Defendant argues the allegations describe a breach of contract and Plaintiff is improperly attempting to transform a simple breach of contract into one for financial elder abuse. Defendant contends the funds at issue were voluntarily transferred by Plaintiff to Defendant under the terms of a commercial loan and were not taken or appropriated by Defendant. Thus, the transactions fall squarely within the statutory exception set forth in Welfare and Institutions Code section 15610.30. Defendant further contends there are no factual allegations showing that Defendant intended to defraud Plaintiff when the loan agreements were executed, and the conclusory allegations that Defendant concocted a scheme to defraud Plaintiff do not satisfy the heightened pleading standard for fraud.

Plaintiff contends that Defendant misquotes section 15610.30 and subdivision (c), which provides that a taking of an elder’s property includes instances where the taking occurred by means of an agreement, and that this defeats Defendant’s argument. Plaintiff contends that the

		Complaint adequately alleges facts showing that Defendant targeted Plaintiff's advanced age and knew his conduct would deprive and harm an elder. "Financial abuse" of an elder is the taking, obtaining, or retention of property of an elder for a wrongful use or with intent to defraud. (Welf. & Inst. Code, § 15610.30(a)(1).) "A person or entity shall be deemed to have taken, secreted, appropriated, obtained, or retained property for a wrongful use if, among other things, the person or entity takes, secretes, appropriates, obtains, or retains the property and the person or entity knew or should have known that this conduct is likely to be harmful to the elder or dependent adult." (Id., § 15610.30(b).) "For purposes of this section, a person or entity takes, secretes, appropriates, obtains, or retains real or personal property when an elder or dependent adult is deprived of any property right, including by means of an agreement, donative transfer, or testamentary bequest, regardless of whether the property is held directly or by a representative of an elder or dependent adult." (Id., § 15610.30(c).) Defendant contends that subdivision (b) provides that a person shall not be deemed to have committed financial abuse if the person "takes, secretes, appropriates, obtains, or retains . . . real or personal property of an elder . . . for a lawful purpose or as part of a good faith business transaction." This quote appears nowhere in section 15610.30. The Complaint alleges that Defendant concocted a scheme to defraud Plaintiff and preyed upon Plaintiff's advanced age with knowledge that his acts were improper and unlawful. These allegations must be accepted at true for the purposes of Defendant's Demurrer. Despite Defendant's contentions, the Complaint does not merely allege a simple breach of contract claim but also alleges that Defendant purposefully took advantage of Plaintiff's age in convincing Plaintiff to enter into the contract and agree to terms that were more favorable to Defendant.
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		Thus, the second cause of action is adequately alleged and is not uncertain. Defendant to file an answer to the Complaint within 10 days. Moving party to give notice.
104	Mejia Villa vs. Castaneda 23-01314626	Motion to Appoint Receiver and Motion for Preliminary Injunction Plaintiff SARAI MEJIA VILLA (“Plaintiff”) will, and hereby does, move the Court for an order: · Appointing PRABHJIT SINGH MARWAH, Financial Advisor, of RYSE FINANCIAL, San Dimas, CA (or such other neutral person as the Court may select) as receiver over the real properties identified in the concurrently filed declarations (collectively, the “Properties”) and over all rents, issues, profits, and income (the “Disputed Funds”), security deposits, books, and records relating to the Properties, with the powers set forth in the [Proposed] Order; · Issuing a preliminary injunction enjoining Defendant ESTHER CASTAÑEDA, in her representative and individual capacities, and her agents, employees, and all persons acting in concert with her, from collecting, receiving, disbursing, transferring, encumbering, or dissipating any Disputed Funds derived from the Properties; from entering into, modifying, or renewing any lease or rental arrangement for any portion of the Properties; from removing, concealing, altering, or destroying any books or records relating to the Properties; and from interfering with the receiver in the discharge of the receiver’s duties; · Directing Defendant and all persons in possession or control to turn over to the receiver possession of the Properties, together with all Disputed Funds, security

	deposits, keys, leases, books, records, and accounts relating thereto; and · Setting the amount of the undertaking required of the receiver under CCP § 567(b). Initially, a receivership is a harsh, time-consuming, expensive, and potentially unjust remedy and thus is available only where a more “delicate,” alternative remedy (i.e., injunction, writ of possession, attachment, provisional director, lis pendens) is inadequate. In other words, it should not be requested unless essential because no other remedy will do the job. [See City & County of San Francisco v. Daley (1993) 16 CA4th 734, 745] The moving papers must allege facts establishing one of the statutory grounds for appointment of a receiver. [Miller v. Oliver (1917) 174 C 407, 410] Moreover, since a receivership is an equitable remedy, the equitable considerations in an injunction proceeding apply—i.e., there must be a showing of irreparable injury and inadequacy of other remedies. [Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp. (1953) 116 CA2d 869, 872] Here, Plaintiff cites the following statutory grounds for appointing a receiver: Code Civ. Proc., § 564(b)(9), which states: (b) A receiver may be appointed by the court in which an action or proceeding is pending, or by a judge of that court, in the following cases: (9) In all other cases where necessary to preserve the property or rights of any party. Here, Plaintiff has not established any property rights, let alone her interest.
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	She declares: 8. The Properties consist of sixteen parcels of residential rental real property located in Santa Ana, Yorba Linda, Anaheim, Whittier, Big Bear Lake, and Perris, California. The Properties, and (to the extent known) their record title, encumbrances, and approximate values, are identified in the schedule attached as Exhibit 1. The Properties have a combined value exceeding \$20 million. (Declaration of SARAI MEJIA VILLA¶7.) However, Ex. 1 is a sideways Excel sheet of the addresses of various properties, their recording numbers, the grantee/owner, the APN, the recording date, and the rental income. Plaintiff has not established how she has personal knowledge of any of the aforementioned. Plaintiff suggests that she has a property interest in the 16 properties pursuant her “Marvin” claim. The California Supreme Court held in Marvin: In summary, we base our opinion on the principle that adults who voluntarily live together and engage in sexual relations are nonetheless as competent as any other persons to contract respecting their earnings and property rights. Of course, they cannot lawfully contract to pay for the performance of sexual services, for such a contract is, in essence, an agreement for prostitution and unlawful for that reason. But they may agree to pool their earnings and to hold all property acquired during the relationship in accord with the law governing community property; conversely they may agree that each partner's earnings and the property acquired from those earnings remains the separate property of the earning partner.¹⁰ So long as the agreement does not rest upon illicit meretricious consideration, the parties may order their economic
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affairs as they choose, and no policy precludes the courts from enforcing such agreements.

[Marvin v. Marvin (1976) 18 Cal.3d 660, 674–675.]

To that end, Plaintiff declares:

4. During our relationship, the decedent and I agreed that we would pool our earnings and efforts and share equally in the property we accumulated, and that the Properties would be acquired and held for our joint benefit. We also acted consistently with that agreement by jointly contributing to the Properties, jointly managing the Properties, and commingling funds for the Properties' benefit.

5. In reliance on our agreement, I contributed toward the purchase of and down payments on the Properties, raised our children while setting aside my own education, assisted in the continuous operation of our various businesses, managed the Properties alongside the decedent, and contributed to the improvement of the Properties.

(Decl. of Sarai Mejia Villa¶4,5.)

Unfortunately, Plaintiff's only evidence is her self-serving declaration. And, according to her Ex. 1, the properties were not "acquired and held for our joint benefit" because the grantee/owner was Jose Castaneda, Jose M. Castaneda, or Jose Miguel Castaneda, a single man. And Jose Miguel Castaneda is also Decedent's brother and claims title to the properties at issue. (SAC¶2.7, TAC¶12). So, not only were the properties not held for Plaintiff and Decedent's joint benefit, it appears they were possibly held by a 3rd party. Or, alternatively, Decedent used his brother's name to acquire the properties.

Plaintiff attempts to resolve the identity issue with declarations submitted with the reply. But the Court

	will not consider those untimely declarations. [See Jay v. Mahaffey (2013) 218 CA4th 1522, 1537-1538.] Furthermore, Plaintiff provides no evidence that she pooled money toward the down payment on any of the properties. She provides no examples or evidence of managing any of the properties. Furthermore, there is no evidence of irreparable injury and inadequacy of other remedies. [Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp. (1953) 116 CA2d 869, 872.] The 16 properties appear to be investment properties. (Plaintiff Decl¶16.) They are not unique to Plaintiff. There is no evidence that they are in danger of being sold. The only injury here is that Defendant Esther may be spending the rent profits. (Id.¶12.) However, to the extent that is true, that money can likely be traced and provide a basis for damages. Plaintiff provides no reason why these rents could not ultimately be recovered. Plaintiff provides no evidence that Defendant has “allowed property taxes, mortgages, HOA dues, tax withholdings, and required upkeep on the Properties to go unpaid.” (Id¶12.) As to the Yorba Linda property being rented to five to eight separate families, nothing about Plaintiff’s requested relief seeks to change that situation. Additionally, regarding status quo, Decedent passed away on 3/22/2022. On 3/21/2023, this action was filed. That is, whoever has been controlling and managing the 16 properties has done so for 4 years. Trial herein is set for February 2027. Therefore, ordering a receiver at this late stage in the litigation appears unwarranted. As such, the Motion is DENIED. Defendant’s RJN of the Third Amended Complaint and the Motion for Receiver in the Probate Case is granted
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		to the extent the documents were filed, but not as to the truth of the contents therein. Plaintiff’s RJN is denied as no documents were attached. Defendant’s Objections are improper as the objected-to material is not properly identified.
106	Esfahani vs. Bustos 25-01489387	Motion to Seal Defendant, Valeria Bustos (“Defendant”), in pro per, moves to seal “Settlement Agreement-related papers” under California Rules of Court, rules 2.550-2.551. A Request for Dismissal, without prejudice, was filed and entered on November 24, 2025, as to the entire action of all parties and all causes of action. (ROA 18.) The instant motion to seal was filed on June 23, 2026, many months after the Court entered dismissal of the entire action. Considering the dismissal, Defendant’s motion to seal is MOOT. The Court orders the clerk to give notice.
107	Hamidian vs. Avis Budget Group, Inc. 20-01174350	Motion for Severance Plaintiff, Afsaneh Hamidian, moves for an order severing the pending cross-complaints in this action from the trial of Plaintiff’s Complaint, for purposes of trial. Specifically, Plaintiff moves for an order providing that: (1) trial of Plaintiff’s Complaint against Defendant Jeff Oviedo & Associates, Inc. (“JOA”)—the sole remaining defendant—shall proceed first before a jury; and (2) the cross-complaints filed by Avis Budget Group, Inc. (“Avis”), the County of Orange (the “County”), and JOA shall be severed from that trial and

		shall instead be tried by the Court at a later date set at the Court's convenience. Defendant, CTG Construction, Inc. ("CTG") contends that the Court should deny Plaintiff's Motion to Sever Cross-Complaints for Purposes of Trial on the grounds that severing the cross-complaints and proceeding first with Plaintiff's Complaint against JOA would create a substantial risk of inconsistent findings and awards, and allow overlapping liability and damages issues to be tried before CTG's remaining exposure through JOA's Cross-Complaint is resolved. CTG also provides, that in the alternative, if the Court orders separate phases, CTG requests that the Court order the threshold cross-complaint issues to be heard first, including whether JOA has any surviving express contractual indemnity or duty-to-defend claim against CTG and whether any rights JOA claims as an alleged agent of the County were released or waived. Code of Civil Procedure section 1048(b) provides as follows: "The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States." "[I]t is within the sound discretion of the court to difine [sic] issues and direct the order of proof," and "[i]t is within the discretion of the court to order a severance and separate trials" (McLellan v. McLellan (1972) 23 Cal.App.3d 343, 353.) In determining whether severance is appropriate, courts often look to other factors aside from whether the case presents separate issues. For example, courts will consider the complexity of the issues, the risk of jury
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	confusion, judicial economy, and whether the claims present separate and independent issues. (Downey Sav. & Loan Ass'n v. Ohio Cas. Ins. Co. (1987) 189 Cal.App.3d 1072, 1086.) Granting or denying a motion for separate trials lies within the trial court's sound discretion, and is subject to reversal on appeal only for clear abuse. (Grappo v. Coventry Financial Corp. (1991) 235 Cal.App.3d 496, 504.) As a threshold matter, the Cross-Complaints filed by Avis and the County were dismissed, with prejudice. Specifically, on June 18, 2026, the County's Cross-Complaint was dismissed, with prejudice (ROA 624); on June 29, 2026, Avis's Cross-Complaint against Cross-Defendant, CTG Construction, Inc. was dismissed, with prejudice (ROA 637), and on July 2, 2026, Avis's Cross-Complaint against JOA was dismissed, with prejudice (ROA 640). Only JOA's Cross-Complaint remains for trial. JOA's Cross-Complaint against CTG remains as to the first cause of action for express contractual indemnity; second cause of action for declaratory relief – duty to defend; and fifth cause of action for breach of contract. (ROA 173.) These claims are different from Plaintiff's claims for premises liability, negligence against JOA. JOA's crossclaims raise separate and independent issues from Plaintiff's claim of negligence against JOA. Despite CTG's opposition to severance, CTG appears to concede that severance is appropriate, in part, given its own request to bifurcate the JOA's cause of action for express contractual indemnity to be tried first before Plaintiff's claims against JOA. (CTG's Motion in Limine No. 10). Therefore, it appears that the question is not whether Plaintiff's claims in her Complaint should be severed from JOA's remaining claims in its Cross-Complaint,
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		but in what order severance should be had. Even if CTG did not make such concession, severance is warranted due to the differing claims and issues between Plaintiff's Complaint and JOA's Cross-Complaint, to avoid jury confusion, and to promote efficiency and judicial economy. While some evidence may be overlapping, the issues to be determined to establish JOA's claims against CTG are separate and distinct from the issues to be determined to establish Plaintiff's claims against JOA. As such, there is no risk of inconsistent findings and awards, or overlapping liability and damages issues. Any overlap as to the evidence to establish facts, i.e., same incident, same alleged dangerous condition, and same project in light of the independent issues to be determined as between the Complaint and JOA's Cross-Complaint does not support trying both pleadings together. In addition, CTG does not deny or dispute Plaintiff's assertions that Plaintiff's claims against JOA involves less evidence, less witnesses, and less motions in limine than what will be presented for JOA's claims against CTG, such that it would be more expeditious to conduct a jury trial on Plaintiff's claims against JOA as it consists of less evidence and witnesses, and then, proceed with a longer court trial on JOA's contract-based claims. Despite CTG's claims, there is no prejudice to CTG if Plaintiff's claims against JOA are permitted to be severed and tried first, because the jury is only determining JOA's liability and fault on Plaintiff's tort claims. It is undisputed that the court will determine JOA's contract-based claims. (Mabie & Mintz v. B & E Installers (1972) 25 Cal.App.3d 491, 495 [finding "the jury verdict was not a binding determination of the indemnity issues under the doctrine of res judicata either as merger or bar as collateral estoppel" where
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	parties were not adversaries in the personal injury phase of the trial and were not parties to the jury trial].) As to CTG’s claim that JOA’s crossclaims should be heard first as they are “threshold” issues, CTG fails to demonstrate that JOA’s claims that it may assert rights as an alleged agent, representative, or indemnitee of the County are “threshold” issues. CTG does not show that any issue in JOA’s Cross-Complaint and remaining contract-based claims must necessarily be determined before a jury trial is held on Plaintiff’s tort claims against JOA. Based on the foregoing, severance is appropriate in light of the separate and independent issues between Plaintiff’s tort claims and JOA’s contract-based claims, and as severance will avoid any risk of jury confusion by being presented with evidence on the contract-based claims brought by JOA against CTG and Plaintiff’s tort claims against JOA. Given that CTG does not appear dispute Plaintiff’s assertion that Plaintiff’s tort claims against JOA involve less evidence than the contract-based claims by JOA against CTG, it would be more expeditious to proceed with a jury trial on Plaintiff’s Complaint against JOA first, and then have the court try JOA’s three contract-based claims in its Cross-Complaint. Thus, the Court GRANTS Plaintiff’s motion to sever the only pending Cross-Complaint—JOA’s Cross-Complaint against CTG—from Plaintiff’s Complaint against JOA, and to try Plaintiff’s tort claims first, with JOA’s contract-based claims to follow. Plaintiff to give notice. The Court will verify that what remains is Plaintiff’s Complaint against Defendant, Jeff Oviedo & Associates Inc., and Jeff Oviedo & Associates Inc.’s Cross-Complaint against CTG Construction as to the first cause of action for express contractual indemnity; second cause of action for declaratory relief – duty to
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		defend; and fifth cause of action for breach of contract. (ROA 173). The Court could not locate a request to dismiss CTG Construction Inc.’s Cross-Complaint against Butier Engineering, Inc., so it appears it would remain pending, but this seems to be an oversight. The Court seeks clarification from the parties.
108	Sweet Carolina Films, LLC vs. Inspired Family Entertainment 19-01073246	1. Petition to Confirm Arbitration Award 2. Case Management Conference Petitioner, Sweet Carolina Films, Inc.’s Petition to Confirm Contractual Arbitration Award is GRANTED. Initially, the Court notes that the Petition and Response spell Defendant Aldo Guaglianone’s last name “Guaglione.” However, the Complaint and Defendant’s answer (ROA 66) both spell Defendant’s last name as “Guaglianone”. The Court shall spell this defendant’s last name in accordance with the pleadings. The two procedural deficiencies identified in the Court’s November 18, 2025, Order have been corrected. Petitioner has included the electronic service address of the person making the electronic service on the proof of service, and has listed Respondent, Aldo Guaglianone aka Johnny Remo (“Respondent Aldo”), as a respondent in compliance with Code of Civil Procedure section 1285. Respondent also has filed a Response which provides that he does not oppose Petitioner’s compliance with the Court’s November 18, 2025 Minute Order requiring that he be listed on the Petition, but objects to any judgment against him individually since the arbitration verdict expressly enters judgment only against Inspired Family Entertainment, Inc.

		The “Verdict” states: “Judgment is entered in favor of Sweet Carolina Films, LLC and against Inspired Family Entertainment, Inc. in the amount of \$108,340.14.” (Attachment 8(c).) It additionally states, “On this record, there is no substantive evidence that Aldo Guaglione [sic] aka Johnny Remo acted ultra vires with respect to any actions on behalf of Inspired Family Entertainment, Inc.” (Ibid.) Based on the foregoing, judgment shall be entered only against Defendant, Inspired Family Entertainment, Inc., in conformity with the arbitration award. Petitioner to give notice.
109	Neri Bahena vs. Gregory's Pallet Inc 22-01281126	1. Motion for Terminating Sanctions 2. Case Management Conference Plaintiff Pedro Neri Bahena (“Plaintiff”) moves for an order terminating and striking all defenses available to defendant Certified Enterprises, Inc. (“CEI”) and/or evidentiary sanctions, issue sanctions and/or monetary sanctions against CEI and its attorneys Perlman Brown & Wax LLP, in the amount of \$5,568.00. CCP section 2023.030 outlines the various sanctions that may be imposed “against anyone engaging in conduct that is a misuse of the discovery process,” including: monetary sanctions, issue sanctions, evidence sanctions, a terminating sanction, and a contempt sanction. These sanctions may be imposed by the court, “after notice to any affected party, person, or attorney, and after opportunity for hearing.” (Code Civ. Proc., § 2023.030.) Among other acts, disobeying “a court order to provide discovery” and “failing to respond or to submit to an authorized method of discovery” are misuses of the discovery process and conduct that is subject to sanctions. (Code Civ. Proc. § 2023.010, subd. (d), (g).) “Once a party or witness has been ordered to attend a deposition, or to answer discovery, or to produce documents, more severe

sanctions are available for continued refusal to make discovery.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:2145 [emphasis in original].)

Many courts have found that terminating sanctions should be imposed only if the court has found a wilful failure to comply. (See Valencia v. Mendoza (2024) 103 Cal.App.5th 427, 447; R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486, 496.) The trial court has “broad discretion in selecting the appropriate penalty,” and its determination should be upheld “absent an abuse of discretion.” (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604.) Nevertheless, terminating sanctions “are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party.” (R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486, 496.) The burden of showing sanctions is not justified (i.e., that the responding party did not willfully fail to perform) lies with the responding party. (See Corns v. Miller (1986) 181 Cal.App.3d 195, 201.)

In this case, on March 19, 2026, Judge De La Cruz ordered CEI to serve verified, code compliant responses, without objection, to Plaintiff’s Requests for Production no later than fourteen (14) days after receiving notice of the Order. (ROA 172.) No sanctions were imposed at that time. (Id.) Plaintiff served notice of the order that same day by email. (ROA 171.) Plaintiff filed this motion for terminating sanctions on April 3, 2026.

Meanwhile, CEI’s demurrer to the entire Complaint had been pending since January 12, 2026. (ROA 143.) The Court heard the demurrer on April 14, 2026, and sustained it without leave to amend. (ROA 180.) The ruling effectively terminated CEI’s involvement in the case, although no judgment of dismissal was ever entered.

	On April 22, 2026, Plaintiff filed a motion for reconsideration of the Court’s order sustaining the demurrer. (ROA 188.) Although this Court denied the motion for reconsideration, it modified its prior order based on its inherent power to reconsider its ruling. (ROA 215.) Accordingly, on August 18, 2026, the Court modified its April 14, 2026, order to allow Plaintiff 20 days leave to amend. Plaintiff timely filed a First Amended Complaint. CEI takes the position that it was never a proper party to this case, as evidenced by the Court sustaining its demurrer without leave to amend. Plaintiff, by contrast, contends that CEI knowingly and willfully violated the March 19, 2026, court order, gambling that its demurrer would ultimately be sustained. The time between when the discovery responses were due and the demurrer was initially ruled upon was less than three weeks. Although the Court finds it excusable that CEI did not produce discovery responses after the demurrer was sustained without leave to amend, CEI’s failure to timely produce the responses as ordered on March 19, 2026, in the first instance is an abuse of the discovery process. The demurrer was already pending when Judge De La Cruz heard the discovery motion. CEI could have sought a stay or sought a longer timeframe to provide the responses. Instead, CEI unilaterally decided to excuse itself from compliance with a Court order. The Court finds that monetary sanctions against CEI and its counsel, Pearlman, Brown & Wax, L.L.P., are appropriate at this juncture. However, the amount requested by Plaintiff is excessive. Sanctions in the amount of \$1,000 (4 hrs at \$250/hr) are due and payable to Plaintiff’s counsel within 30 days of this order. CEI is also ordered to produce responses as set forth in Judge De La Cruz’s March 19, 2026, Order, within 15 days.
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		Plaintiff to give notice.
110	Sound-Crete Contractors, Inc. vs. Panku, Inc. 21-01238373	1. Motions for Attorney Fees are CONTINUED to 09/22/2026 at 10:00 AM 2. Motion to Tax Costs is CONTINUED to 09/22/2026 at 10:00 AM
111	Bonakdar vs. Bonakdar 25-01527577	1. Motion for Order Authorizing Alternative Service 2. Case Management Conference Plaintiff Zahra Bonakdar (“Plaintiff”), proceeding proper, moves for an order authorizing Plaintiff (1) to serve Defendant Zahra Abbasi Khalili through her guardian ad litem and court-appointed counsel and (2) to serve Defendant Mohammad Bonakdar through WhatsApp, text message, email, and any additional method the Court finds reasonably calculated to provide actual notice. Defendant Zinab Bonakdar aka Sofia Bonakdar (“Defendant”) opposes the motion as to Defendant Mohammad Bonakdar. Defendant Zinab Bonakdar aka Sofia Bonakdar did not address Plaintiff’s arguments regarding service on Defendant Zahra Abbasi Khalili through her guardian ad litem and court-appointed counsel. First, the Court notes that Plaintiff did not file a proof of service for the moving papers. This is improper. Still, the Court will reach the merits of the motion since Defendant opposed the motion and did not raise the issue of improper service of the moving papers. This is not the first time that Plaintiff has failed to file proof of service with her filings. Moving forward, Plaintiff MUST file proof of service, and failure to do so will result in sanctions, as this is now the second time the

		Court has ordered Plaintiff to comply with the Code of Civil Procedure regarding service. Moving to the merits, the Motion is GRANTED. 1. Defendant Zahra Abbasi Khalili First, the Motion is GRANTED as to Plaintiff's request to serve Defendant Zahra Abbasi Khalili through her guardian ad litem and court-appointed counsel. Defendant does not oppose Plaintiff's proposition to serve Defendant Zahra Abbasi Khalili through her guardian ad litem and court-appointed counsel. Moreover, the Court finds that such service is reasonably calculated to give Defendant Zahra Abbasi Khalili actual notice. 2. Defendant Mohammad Bonakdar Second, the Motion is GRANTED as to Plaintiff's request to serve Defendant Mohammad Bonakdar through WhatsApp, text message, email, and any additional method the Court finds reasonably calculated to provide actual notice. Code of Civil Procedure section 413.10 states: "Except as otherwise provided by statute, a summons shall be served on a person: (a) Within this state, as provided in this chapter. (b) Outside this state but within the United States, as provided in this chapter or as prescribed by the law of the place where the person is served. (c) Outside the United States, as provided in this chapter or as directed by the court in which the action is pending, or, if the court before or after service finds that the service is reasonably calculated to give actual notice, as prescribed by the law of the place where the
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	person is served or as directed by the foreign authority in response to a letter rogatory. These rules are subject to the provisions of the Convention on the “Service Abroad of Judicial and Extrajudicial Documents” in Civil or Commercial Matters (Hague Service Convention).” (Code Civ. Proc., § 413.10.) Code of Civil Procedure section 413.30 states: “(a)(1) If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court. (2) A plaintiff seeking to establish reasonable diligence under this section shall set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found. (b) This section does not apply in an action against a governmental entity or an agent or employee of the governmental entity who has been sued in an official or individual capacity.” (Code Civ. Proc., § 413.30 [emphasis added].) Moreover, section 417.20 states that proof that a summons was served on a person outside this state shall be made: “(a) If served in a manner specified in a statute of this state, as prescribed by Section 417.10, and if service is made by mail pursuant to Section 415.40, proof of service shall include evidence satisfactory to the court
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		establishing actual delivery to the person to be served, by a signed return receipt or other evidence; (b) In the manner prescribed by the court order pursuant to which the service is made; (c) Subject to any additional requirements that may be imposed by the court in which the action is pending, in the manner prescribed by the law of the place where the person is served for proof of service in an action in its courts of general jurisdiction; or (d) By the written admission of the party. (e) If served by posting pursuant to Section 415.45, by the affidavit of the person who posted the premises, showing the time and place of posting, and an affidavit showing the time and place copies of the summons and of the complaint were mailed to the party to be served, if in fact mailed.” (Code Civ. Proc., § 417.20 [emphasis added].) “In deciding whether service was valid, the statutory provisions regarding service of process should be liberally construed to effectuate service and uphold the jurisdiction of the court if actual notice has been received by the defendant.” (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1436, as modified on denial of reh'g (May 26, 1994).) Here, Plaintiff asks the Court for authority to serve Defendant Mohammad Bonakdar through WhatsApp, text message, email, and any additional method the Court finds reasonably calculated to provide actual notice. Plaintiff contends Defendant Mohammad Bonakdar is currently in Iran, and the USPS has suspended mail service to Iran. The Court notes that Iran does not appear to be a party to the Hague Service Convention.
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	In support of her motion, Plaintiff has established that she exercised reasonable diligence in attempting to serve Defendant Mohammad Bonakdar by mail. Plaintiff explains that she attempted to serve Defendant Mohammad Bonakdar by mail but that USPS is “not accepting mail to Iran because international mail service to Iran was suspended. USPS personnel showed Plaintiff a USPS notice titled ‘Suspended Service- Middle East and Military Zips,’ dated March 4, 2026, which lists Iran as a suspended destination.” In support of this, Plaintiff attaches pictures from her attempt to send the summons and complaint to Defendant Mohammad Bonakdar by mail as well as USPS’s notification that it has “suspended service” in the middle east, including in Iran where Defendant Mohammad Bonakdar is currently located. Based on these diligent efforts, the Court finds that Plaintiff is entitled to attempt service on Defendant Mohammad Bonakdar by alternative means. The Court finds that Plaintiff’s proposition to serve Defendant Mohammad Bonakdar through WhatsApp, text message, and email is appropriate under the circumstances as the Court finds that such service is reasonably calculated to provide actual notice to Defendant Mohammad Bonakdar. For example, Plaintiff provides exhibits that show that Defendant Mohammad Bonakdar uses the number +98 912 117 2920 to communicate with Plaintiff. Defendant Mohammad Bonakdar initiates and responds to contact using the number +98 912 117 2920. Given the above, the Court GRANTS Plaintiff’s motion. Plaintiff is authorized to serve Defendant Mohammad Bonakdar at the number +98 912 117 2920 as well as the email address Plaintiff provided. Should Plaintiff opt to effectuate service by this means, Plaintiff must serve Defendant Mohammad Bonakdar
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		by both telephone/WhatsApp and email at the numbers and addresses provided in the motion. Plaintiff to give notice
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